

HOUSE No. 1737

The Commonwealth of Massachusetts

PRESENTED BY:

Richard M. Haggerty

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to historic homes.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Richard M. Haggerty</i>	<i>30th Middlesex</i>	<i>1/17/2025</i>

HOUSE No. 1737

By Representative Haggerty of Woburn, a petition (accompanied by bill, House, No. 1737) of Richard M. Haggerty relative to the penalty for illegally removing certain parts of historical homes. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1541 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to historic homes.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 266 of the General Laws, as appearing in 2016 Official Edition, is hereby
2 amended by inserting after section 95 the following new section:-

3 Section 95A.

4 In this section, “historic home” shall mean any dwelling house listed listed in the State
5 Register of Historic Places established and maintained by the Massachusetts Historical
6 Commission pursuant to G. L. c. 9, section 26C or identified by a plaque identifying the
7 homestead as an historic homestead pursuant to G. L. c. 9, section 27D.

8 Whoever willfully, intentionally and without right removes items, including, but not
9 limited to, copper gutters, copper wiring, aluminum or brick; displaces, destroys, defaces, mars

10 or injures the walls, wainscoting or any other part of any historical home, or the appurtenances
11 there of, by cutting, breaking, writing or otherwise, shall be punished by a fine of not less than
12 \$100 and not more than \$1000 or by imprisonment for not more than 2 years. Any person
13 convicted under the provisions of this section shall, in addition to the fine assessed, reimburse
14 the historic home owner for the total amount of damage incurred.